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SUPERIOR COURT OF THE STATE OF WASHINGTON
FOR KING COUNTY

MELVINA MANNING,	)	
	)	
Petitioner,	)	No. 22-2-09380-3
	)	
v.	)	COA 84450-4-I
	)	
ZACKARIAH BENNETT,	)	
	)	
Respondent.	)	
_____	)	

VERBATIM REPORT OF PROCEEDINGS
REQUEST FOR DOMESTIC VIOLENCE PROTECTION ORDER
BEFORE THE HONORABLE COMMISSIONER PRO TEM JAVIER ORTIZ
AND COMMISSIONER PRO TEM LINDSEY GOHEEM

7/1/2022

Volume #1 of 1

APPEARANCES

For Petitioner: Pro Se

For Respondent: Pro Se

Requested by Respondent
Transcribed by Tom Marshman

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1 BEGIN PROCEEDINGS FOR 7/1/22

2 THE COURT: We are on the record.

3 THE CLERK: Admitting the courtroom.

4 Taking Matter No. 13 on the docket, Cause No. 22-2-
5 09380-3, Manning v. Bennett.

6 THE COURT: Will all parties related to this case please turn
7 on their Zoom cameras if they are able to and please remain
8 muted.

9 (Pause in proceedings.)

10 THE COURT: Okay. It looks like we have both parties now on
11 camera.

12 And so starting with the petitioner, I will ask the
13 petitioner to state their full legal name, their date of birth
14 for identification purposes, and their preferred pronouns.

15 THE PETITIONER: Melvina Manning, 5/13/59, and Mrs.

16 THE COURT: Thank you, Mrs. Manning.

17 And now to the respondent, same thing, please state
18 your full legal name, your date of birth for identification
19 purposes, and your preferred pronoun.

20 Sir, you're still on -- you're still muted. I
21 apologize for that.

22 THE RESPONDENT: Zackariah Jeremiah Bennett, January 7, 1981.
23 Mr.

24 THE CLERK: Thank you, Mr. Bennett.

25 And so this comes before the Court -- actually, this

1 was -- Ms. Manning originally filed a petition in King County
2 District Court on June 17, 2022, under Cause No. 22-
3 CIV09428KCX. And that was transferred over to King County
4 Superior Court given that the underlying issue deals with a
5 minor child and there was a request for a temporary protection
6 order; and so that case was transferred to Superior Court
7 jurisdiction on June 21, 2022.

8 Mr. Bennett, just to let the parties know, I have
9 reviewed the case file, including the criminal background
10 check. I have a couple questions, starting with Mr. Bennett.

11 Were you served a copy of the original petition and
12 order transferring the domestic violence matter to District
13 Court -- or to Superior Court and setting the hearing to July
14 1st, today?

15 THE RESPONDENT: Yes, I was.

16 THE COURT: And who were you served by?

17 THE RESPONDENT: The Klickitat County Sheriff.

18 THE COURT: Okay. And do you recall what date that might have
19 been?

20 THE RESPONDENT: 20 something? I'm not sure exactly. It was
21 something.

22 THE COURT: Was it before or after last Friday?

23 THE RESPONDENT: Before.

24 THE COURT: Okay. And so I -- Court is satisfied -- and you
25 did -- and just to clarify, you can receive a copy of the

1 petition asking for an order for protection?

2 THE RESPONDENT: Yes, sir.

3 THE COURT: Okay. So the Court is satisfied that Mr. Bennett
4 was served and has reviewed these pleadings.

5 And, Mr. Bennett, I will inquire with Ms. Manning, as
6 well, but if Ms. Manning is ready to proceed today are you
7 ready to go forward today on Ms. Manning's request for a order
8 for protection?

9 THE RESPONDENT: I am.

10 THE COURT: Okay.

11 And, Ms. Manning, are you wanting to go forward today
12 with your request for an order for --

13 THE PETITIONER: Yes, Your Honor.

14 THE COURT: -- protection?

15 THE PETITIONER: Yes, Your Honor.

16 THE COURT: Okay.

17 I also would like to go over one other procedural
18 matter because I noticed that there was a motion filed
19 yesterday by Mr. -- by Mr. Bennett asking for a GA -- a motion
20 to appoint a guardian ad litem for Timothy Edward Bennett II.
21 And so I reviewed the motion, but I don't -- I note that it's
22 not properly before me.

23 Ms. Manning, did you receive a copy of this motion?

24 THE PETITIONER: I received it via the documents on the
25 court.

1 THE COURT: Okay. So you received it electronically, were you
2 served, then?

3 THE PETITIONER: I wasn't served. I actually paid for it
4 electronically.

5 THE COURT: Okay.

6 Mr. Bennett, did you make an effort to serve Ms.
7 Manning with that motion this you're asking the Court to
8 consider?

9 THE RESPONDENT: I was in the process of it. I was planning
10 on doing it today. I need to locate her address in order to
11 get her served and the person to serve them, which I got that;
12 but I didn't have her address yet. I know where she lives but
13 I don't know what her actual address is.

14 THE COURT: Okay. Well, unfortunately that motion is not
15 properly before me. I -- I don't have proof of service, nor --
16 nor was it sufficient time under our local rules for the
17 motion.

18 So I'm going to deny the request for a motion to
19 appoint a guardian ad litem without prejudice just because --
20 you know, if you do want to file it again, you can do that.
21 Obviously the issue was personal -- lack of personal service to
22 Ms. Manning, so I'm not going to get into whether or not the
23 Court should or should not appoint a guardian ad litem.

24 But there is -- there is a matter that the Court does
25 want to address with the parties, and especially with Ms.

1 Manning, especially given the minor child's age of 15. So
2 under the old statute, RCW 26.50, it required that a party
3 younger than the age of 16 be required to have, on their
4 behalf, a petition filed by a parent, guardian, next of kin, or
5 anyone with legal authority to essentially commence an action
6 on their behalf.

7 Under the new statute, RCW 7.105, which starts today,
8 the petition can be filed by anyone 15 years or older, and they
9 don't need -- they don't need a guardian on their behalf to
10 file the petition.

11 And so given that the petition is -- is on behalf of
12 the minor child, Ms. Manning, have you had any indications from
13 the minor child on how they would like to proceed today?
14 Whether they're --

15 THE PETITIONER: He's actually -- he's actually right here
16 with us. If you want to ask him that question?

17 (Pause in proceedings.)

18 THE PETITIONER: Tim is on Zoom with us.

19 THE COURT: Okay. The Court's just thinking about that for a
20 moment.

21 (Pause in proceedings.)

22 THE PETITIONER: And he wants to -- he wants to go ahead with
23 the proceedings.

24 THE COURT: So, Mr. Bennett, do you object to Mr. -- to the
25 minor child to be -- to be included as a party -- as an

1 interested party in this case --

2 THE RESPONDENT: At the moment --

3 THE COURT: -- given his age?

4 THE RESPONDENT: -- yes, Your Honor, I do. I believe that
5 this -- there is a case of parental alienation here and there
6 has been gatekeeping going on and it's caused some real, real
7 serious problems. That's why I was asking for a guardian ad
8 litem to -- to check -- you know, to be able to represent and
9 to be able to ascertain everybody's position in this because
10 this has been ongoing for, you know, 14 years. And it's --
11 it's a full, cut-and-dried parental alienation.

12 THE COURT: Okay, sir.

13 (Pause in proceedings.)

14 THE COURT: At this time the Court is going to take a short
15 recess. We'll actually take our morning recess, so we'll be
16 back on the record at 10:30, and the Court, during this time,
17 is going to consider this current issue right before the Court.
18 So the Court will be in --

19 THE RESPONDENT: Thank you, Your Honor.

20 THE COURT: -- recess. Thank you.

21 (Recess taken.)

22 THE CLERK: Admitting the courtroom.

23 Recalling Matter No. 13 on the docket, Cause No. 22-
24 2-09380-3, Manning v. Bennett.

25 THE COURT: Will all parties please turn on their cameras

1 again? Thank you. And thank you for allowing the Court a
2 short recess on this matter.

3 Since -- as a little background -- since the new
4 statute is now in effect today, the Court does acknowledge that
5 the minor child has a right to intervene if he so chooses as an
6 interested party since the new statute allows persons 15 years
7 or older to file their own petitions on their own behalf.

8 But as there is no motion before that -- before the
9 Court today on that, the Court is not inclined to make the
10 minor child an interested party.

11 However, because of that, Ms. Manning, the Court is
12 requesting that the minor child not be physically present in
13 wherever you're located during these proceedings. So if he is
14 in the living room with you or the bedroom with you or in the
15 kitchen with you, he should be outside so he's not involved in
16 these proceedings today.

17 THE PETITIONER: Okay.

18 THE COURT: Thank you.

19 THE PETITIONER: Understood.

20 THE COURT: And so if the parties are ready to proceed today,
21 we will go forward with Ms. Manning's request for a protect
22 order.

23 Just to clarify, again on the record, Ms. Manning, are
24 you ready to proceed today based on your petition and your
25 testimony for your request?

1 THE PETITIONER: Yes.

2 THE COURT: And, Mr. Bennett, I see that you didn't file --
3 you did file a motion for the GAL. And, as I said, I am
4 denying that without prejudice as that wasn't properly before
5 the Court; but are you ready to proceed today with your
6 testimony and in response to Ms. Manning's --

7 THE RESPONDENT: No, I'm not.

8 THE COURT: Sir?

9 THE RESPONDENT: No, I'm not, Your Honor. I would like to
10 make subpoenas.

11 THE PETITIONER: A what?

12 THE COURT: Can you please -- can you please elaborate, sir?

13 THE RESPONDENT: I would like to have my mother's Ring video
14 because it recorded the entire everything that happened and
15 everything that was said. So I would like that to be, you
16 know, there for the record to prove my -- my case, and as well
17 as her neighbor that witnessed the entire thing. I would like
18 them to be able to give a statement as well so the Court can
19 get an accurate description of events because this is -- this
20 is absolutely absurd, and it's malicious litigation is what it
21 is.

22 And I did nothing, I didn't even -- I wasn't
23 aggressive, I wasn't anything. I came over there and I stayed
24 in the car. My kids got out because they wanted to meet their
25 brother, and she has not let them even meet their brother. And

1 she yelled at them and everything else. I hadn't even got -- I
2 didn't even get out of the car until then, and all I did was
3 ask her for paperwork and ask her why I can't see my son
4 because she hasn't let me see him but once in 14 years. And I
5 never did anything wrong, and I don't understand and it's all
6 I've been trying to do for years now is get back in contact
7 with my son and be able to talk to him, be a part of his life.

8 My children ask me daily -- well, until this incident
9 -- they asked me daily to meet their brother. So I brought
10 them down there, I stayed in the car, I let them go and ask
11 with -- with the mother as an escort. And it was -- if you saw
12 the way she treated those kids and the way she treated me, then
13 you would understand who really needs the protection order here
14 and it's definitely not her.

15 THE COURT: Sir, I understand that. None of that is before me
16 today. I mean, you -- you can testify, if you want to,
17 regarding that; but you're not -- I haven't sworn the parties
18 in so the Court's not going to take that into consideration at
19 this time.

20 In regard to your request about Ms. Manning's Ring
21 camera and that recording, actions under both RCW 26.50 and now
22 RCW 7.105 are consider special proceedings so I -- I cannot
23 grant a subpoena or discovery to obtain that information from
24 Ms. Manning.

25 So, you know, those discovery rules do not apply to

1 these types of cases, so I'm not going to order that Ms.
2 Manning disclose any -- any recordings or anything in her
3 possession, unless she so chooses to. But that's not before
4 me. I haven't seen any of that, and I'm not going to order
5 discovery or subpoena for that information, as well.

6 So, Mr. -- but, Mr. Bennett, you are wanting to
7 provide statements from neighbors; is that correct?

8 THE RESPONDENT: Yes. And --

9 THE COURT: So --

10 THE RESPONDENT: -- am I correct in the fact that I can make
11 my own subpoena to her and to issue my -- or request my own
12 subpoena in the matter? Because I believe that that clearly
13 define -- that clearly -- I mean, that makes the case right
14 there, flat out, I did nothing. I was not threatening; I was
15 not in any way, shape, for form did I do anything constituting
16 this order that would further prevent me seeing my son.

17 And I -- that matter is kind of serious. I didn't do
18 anything wrong and the order that she's putting in for Court
19 today includes me not being able to see, speak to, or come near
20 my son, which that is -- that will cause major, major emotional
21 distress on my part.

22 THE COURT: Sir, I understand that. I can't give legal advice
23 as to whether or not you can submit your own subpoena. If you
24 do have questions about that, you can speak to an attorney
25 regarding those issues.

1 But if you do want additional time to provide written
2 statements to the Court for the Court to review, Mr. Bennett,
3 then I -- the Court can grant a continuance in this matter if
4 that is what you're requesting.

5 THE RESPONDENT: Yes, I am. Thank you, Your Honor.

6 THE COURT: And how -- and so, Mr. Bennett, are you requesting
7 a two-week continuance to provide additional written
8 submissions for the Court to review?

9 THE RESPONDENT: Yes, Your Honor.

10 THE COURT: And, Ms. Manning, do you have a position in favor
11 or against the continuance request?

12 THE PETITIONER: I don't see a reason for a continuance. This
13 has been ongoing harassment. Zack showed up here uninvited; he
14 showed up here in June of 2019 uninvited; he was asked to
15 leave; he did not. He was here over 30 minutes arguing with
16 me. I felt threatened.

17 I -- I don't see a reason for continuance. I just
18 would like to have this matter settled.

19 And if Tim needs to file a petition himself, because
20 he is 15, he would like to do that. So we can either solve
21 this today or Tim can file his own order for protection.

22 THE COURT: And whether the minor child wants to or not,
23 ma'am, I can't give legal advice or I can't direct which way
24 would be preferable or the appropriate way. You may wish to
25 speak to an attorney on that, as well, if you so choose to.

1 THE PETITIONER: I understand. The officer -- the officer
2 that came to our house when Zack was here is the one that
3 advised us to file the -- the harassment order.

4 So, again, I -- I don't really want to continuance, I
5 would rather just have this settled. But that is up to you,
6 Your Honor.

7 THE COURT: Thank you.

8 So there is, in regards to whether or not the Court
9 grants a continuance, there is a rebuttalable presumption of
10 not granting a continuance in order, under the new statute and
11 the previous statute, for efficiency and ultimately coming to a
12 conclusion on these allegations.

13 However, given the severity of these allegations and
14 ensuring that, you know, proper -- the entire sort of history
15 of what happened, Ms. Manning has stated to the Court --
16 although the Court does acknowledge that she was not under oath
17 -- but it is consistent with what was in her petition that this
18 has been ongoing for a few years; and the Court does believe
19 that written submissions by the parties will help clarify to
20 the Court these issues.

21 And so the Court is inclined to a grant a two-week
22 continuance to allow the parties an opportunity to submit
23 materials.

24 And now I'm going to do something a little different.
25 I don't know if you guys were here for the other proceedings,

1 but I'm going to submit what we call a briefing schedule. And
2 so what that means is that I'm going to order that by a certain
3 date Mr. Bennett provide to the Court and to Ms. Manning, so
4 both the Court and I have to be served with pleadings, a copy
5 of whatever response you want to provide based off of what --
6 what Ms. Manning has put in her petition and anything you want
7 to tell the Court. And so that can include written statements
8 from yourself or witnesses, if you have any; text messages;
9 photographs; emails; etc.

10 Now, Ms. Manning, as the party who filed the
11 petition, I'm going to give you an opportunity to submit what
12 we call reply pleadings in response to what Mr. Bennett said.
13 So whatever he submits to you, I will give you an opportunity
14 to provide any written declarations or any exhibits or text
15 messages that you have in response to what he says. So that
16 way both parties have an opportunity to provide statements to
17 the Court.

18 And so the Court is going to -- Ms. Manning, do you
19 have a preference for a continuance either to the 15th or the
20 22nd?

21 THE PETITIONER: 22nd is fine.

22 THE COURT: And, Mr. Bennett, does the 22nd work for you?

23 THE RESPONDENT: That works for me. Thank you, Your Honor.

24 THE COURT: Okay.

25 So I'm going to -- the Court is going to continue this

1 matter to July 22, 2022. Check in will be at 8:30. I also
2 note -- I -- Ms. Manning, is there a current temporary
3 protection order in place in this?

4 THE PETITIONER: Yes, yes.

5 THE COURT: Okay. The Court is going to continue that
6 temporary protection order. I think it was originally in place
7 in the District action, so the Court is going to continue that,
8 as well, to the July 22nd hearing.

9 The Court's not making any modifications to that
10 temporary protection order, so it will remain in full effect
11 until then.

12 The Court is then going to set a briefing schedule,
13 and so, Mr. Bennett, as the responding party, your written
14 material will be due to Ms. Manning no later than noon on July
15 15, 2022.

16 And if you allow -- and if -- and you can either
17 electronically serve her, personally serve her, mail her. If
18 you choose to mail, please allow for three days for it to get
19 to her. So if you want to mail her any pleadings and it's due
20 on the 15th, the mail should go out no later than July 12th so
21 that it gets to her by the 15th.

22 And that -- whatever you serve to Ms. Manning has to
23 also be filed with the Court, so you'll need to go to the
24 clerk's office or you can go online and file, as well.

25 Ms. Manning, since you are the moving party, I will

1 have that your reply material is due to Mr. Bennett and to the
2 Court no later than Tuesday, July 19th, which is three days
3 before the 22nd.

4 And so you'll have an opportunity to submit whatever
5 statements you want to the Court in response to whatever Mr.
6 Bennett has submitted to you by the 15th.

7 Ms. Manning, do you have any questions for the Court?

8 THE PETITIONER: No, sir.

9 THE COURT: Mr. Bennett, do you have any questions to the --
10 for the Court?

11 THE RESPONDENT: No, Your Honor.

12 THE COURT: Okay.

13 I'm going to sign these orders continuing this matter
14 to July 22nd, including a briefing schedule to allow the
15 parties an opportunity to submit written material, and I
16 believe -- I will just double-check -- we do have -- Mr.
17 Bennett, were you able to provide my coordinator with an email
18 address so that we can email you a copy?

19 THE RESPONDENT: I will get it to her right now.

20 THE COURT: Okay. If you can just chat her the email address,
21 we'll make sure you get a copy of the order.

22 And, Ms. Manning, I do have on record an email for
23 you, so we will -- we will email you a copy to the email on
24 record.

25 THE PETITIONER: Okay. Thank you.

1 THE CLERK: And, Your Honor, I've received the email from the
2 respondent.

3 THE COURT: Okay.

4 Thank you, Mr. Bennett. So we have your email.
5 We'll email it to that address -- or email address, as well, so
6 you also have a copy.

7 If there are no other questions, that concludes these
8 -- this proceeding and the parties are excused from the Zoom
9 platform. Thank you.

10 THE CLERK: And, Your Honor, I do have our domestic violence
11 advocate available in the courtroom. I could put Ms. Manning
12 in a breakout room with her if she had any questions about
13 further proceedings?

14 THE COURT: Ms. Manning, would you like an opportunity to
15 speak with our DV advocate in a breakout room regarding these
16 proceedings or any questions that you might have?

17 THE PETITIONER: Yes, Your Honor. Absolutely.

18 THE COURT: Okay. Then at this time I will direct madam
19 coordinator to set up a breakout room for you and the DV
20 advocate.

21 THE PETITIONER: Thank you, sir.

22 THE COURT: And, Mr. Bennett, you are free to leave the Zoom
23 platform at this time. Thank you.

24 THE RESPONDENT: Thank you.

25 END PROCEEDINGS FOR 7/1/22

1 BEGIN PROCEEDINGS FOR 7/22/22

2 THE COURT: All right. At this time the Court will move on to
3 the last case on our calendar, which is Matter No. 7. This is
4 Cause No. 22-2-09380-3, matter of Manning v. Bennett.

5 And we do have both parties appearing on the Zoom
6 platform. I'll ask the petitioner first to please go ahead and
7 unmute and state their name and date of birth for the record.

8 THE PETITIONER: Melvina Manning. 5/13/1959.

9 THE COURT: All right. Thank you. And you may turn your
10 camera on if you're able to do so at this time.

11 Can the respondent now unmute and state their name
12 and date of birth for the Court?

13 THE RESPONDENT: [INAUDIBLE].

14 THE COURT: Can you repeat that? I -- the audio came across
15 as very muffled.

16 THE RESPONDENT: Can you hear me now?

17 THE COURT: I can. You're not coming through very clearly
18 but --

19 THE RESPONDENT: That might have been bad reception.

20 THE COURT: You're getting bad reception?

21 THE RESPONDENT: Yeah, I'm really rural. It's never -- yeah.
22 Zackariah Bennett, January 7, 1981.

23 THE COURT: All right.

24 THE CLERK: Your Honor, would it be better if they called and
25 they can provide that information in the chat function if they

1 have [INAUDIBLE].

2 THE COURT: Mr. Bennett, it may -- you may better -- get a
3 better connection if you call in by phone. The coordinator is
4 going to put the phone number and -- and meeting ID in the chat
5 for you so that you can try that.

6 THE RESPONDENT: Okay. I can also get on land internet right
7 here in the house. It's -- I don't know if can you hear me
8 right now, but I'm going in the house to get to the land
9 internet.

10 THE COURT: All right. I can hear you a little bit but not
11 clearly.

12 (Pause in proceedings.)

13 THE CLERK: Zack is switching to a different computer for --
14 for land internet. He'll be right back.

15 THE COURT: All right.

16 (Pause in proceedings.)

17 THE CLERK: Waiting to be let in to host.

18 (Pause in proceedings.)

19 THE RESPONDENT: Okay. Zackariah Bennett, 1/7/81.

20 THE COURT: All right. Thank you. I can hear you much
21 better.

22 All right. So we are here on the petitioner's
23 petition for protection order. And it's essentially on behalf
24 of the -- the child who the petitioner has legal custody of, as
25 the Court understands it.

1 I did just want to address some pleadings that have
2 been filed. There were several documents that it looks like
3 the respondent filed, and they -- they are showing up in the
4 court file as being filed today. It's possible they were filed
5 last night after 5:00, in which case she they just show up in
6 the court file this morning.

7 But I want to confirm that the petitioner has
8 received all of these and had a chance to review them. So the
9 first thing that was filed is -- it looks like a copy of a
10 document called Agreement and Order for Communication and
11 Contact. It is four pages total. It is not signed, and
12 there's no case number on it. But it's -- the caption says, In
13 Re the Adoption of Timothy E. Bennett II.

14 So, Ms. Manning, did you receive that?

15 THE PETITIONER: I did, Your Honor.

16 THE COURT: All right.

17 The next document is -- it's a typed statement from
18 Pete Welch and Shirley Welch, so it's combined into one filing,
19 but it's two separate typed statements. Total length is two
20 pages. I'll note that they are not signed or sworn under
21 penalty of perjury.

22 Did you receive those, Ms. Manning?

23 THE PETITIONER: Yes, Your Honor.

24 THE COURT: All right.

25 And then the -- there's a document that's one page,

1 it's titled PAS case law but it's actually filing as blank, so
2 there's nothing on there for the Court to review.

3 The next document is -- it's a declaration form. The
4 declaration form itself is blank and unsigned, and then
5 attached to it is a approximately one-and-a-half page typed
6 statement from Jessica Bennett. So the total filing is four
7 pages in length.

8 Did you receive that, Ms. Manning?

9 THE PETITIONER: Yes, Your Honor.

10 THE COURT: The next document is a declaration from Jessalyn
11 (phonetic) Brown, the total filing is two pages in length and
12 it is unsigned.

13 Did you receive that, Ms. Manning?

14 THE PETITIONER: Yes, Your Honor.

15 THE COURT: All right.

16 And then the final one is a declaration from Carol
17 McKinney. This one is a total of four pages in length;
18 although, it looks like it's just the same document, two copies
19 of which were filed together. That one is signed.

20 Did you receive that one, Ms. Manning?

21 THE PETITIONER: I received them all, but I haven't had time
22 to review them. But I don't see that any of these do you mean
23 documents are relevant to the case at hand. The adoption was
24 not finalized and, again, I don't see that it has anything to
25 do with this case.

1 THE COURT: All right.

2 So the -- the Court generally does not consider
3 unsigned declarations or declarations that were not signed
4 under penalty of perjury. So the last --

5 THE RESPONDENT: Your Honor --

6 THE COURT: -- hold on -- the last one that I mentioned, the
7 one -- the declaration of Carol McKinney, that one is signed
8 under penalty of perjury. But the previous ones I mentioned
9 are not.

10 So the options at this point -- and I'll let both
11 parties tell the Court what they want the Court -- how they
12 want the Court to proceed on this -- if we proceed today the
13 Court is not going to consider the declarations that were not
14 signed under penalty of perjury. So that's option number one.

15 Option number two would be we could continue --
16 continue the hearing today. That would leave the temporary
17 order in place, would -- the temporary order would remain in
18 place until the next hearing date, and that would give the
19 respondent a chance to resubmit those declarations, signed
20 versions of them under penalty of perjury.

21 It would also give a chance for the petitioner to
22 respond to them in writing, if she wishes to do so, which she
23 may or may not.

24 So those are, really, the two options. Ms. Manning,
25 I'll hear from you first as to how you want the Court to

1 proceed.

2 THE PETITIONER: I think it's just being prolonged,
3 personally.

4 Again, the first documents you talked about were
5 adoption papers. But the adoption was not finalized. So I
6 don't really understand why those were even filed.

7 THE RESPONDENT: Your Honor, if I may? That was a binding
8 contract under Washington law between me and my mother being as
9 the fact as it was part of what she enticed me with so that I
10 would sign agreement to terminate my rights upon her adoption
11 and agreement to go along with her adoption.

12 Which, according to Washington State Law, that gives
13 me -- that's consideration on my part and made that a legally
14 binding contract, which she just disregarded the entire time.
15 From the day it was made on she did not honor a single line of
16 that contract. So it was either --

17 THE COURT: All right. Hold on, hold on, Mr. Bennett.

18 So --

19 THE RESPONDENT: That's why it's there.

20 THE COURT: -- we're not -- I'm not getting into the substance
21 of the arguments at this point. I'm just determining whether
22 we're going to proceed or continue the hearing.

23 The -- the adoption paperwork is not signed, so the
24 Court does not consider it a contract. It's -- I -- I will
25 review it --

1 THE RESPONDENT: Okay.

2 THE COURT: -- but it is not signed.

3 THE RESPONDENT: Okay. If I could --

4 THE COURT: Okay. But -- hold on, hold on --

5 THE RESPONDENT: -- [INAUDIBLE] experience --

6 THE COURT: -- hold on. Again, right now the issue is are you
7 -- are you requesting a continuance in order to have an
8 opportunity to correct the deficiencies of the documents that
9 are not signed under penalty of perjury, or do you want to
10 proceed with the hearing today with the understanding that I
11 will not be giving any weight to the -- the statements that are
12 not signed under penalty of perjury?

13 THE RESPONDENT: I would -- so if the Court wouldn't mind
14 hearing -- seeing the motion to dismiss matter. If that's not
15 -- if it's not going to be dismissed today, then, yeah, I'll
16 definitely need some more time to get that fixed.

17 And I've been trying to get an attorney but it's been
18 a little bit difficult trying to do so because this is -- this
19 is hurtful and wrong, and I don't believe there's any need for
20 me kind of protection order. They've never been in fear, never
21 will be, and I live 300 miles away on a farm. I've never done
22 anything threatening. I've never done anything that meets any
23 of the requirements --

24 THE COURT: All right. Hold on, hold on. I did --

25 THE RESPONDENT: [INAUDIBLE] motion --

1 THE COURT: -- hold on --

2 THE RESPONDENT: -- then --

3 THE COURT: -- I did see the motion to dismiss. The way that
4 these proceedings work, they're -- we call them summary
5 proceedings. So once the Court has the full hearing on -- on
6 the merits, then the Court decides either to grant the order or
7 if I don't begin the order then the case would be dismissed.

8 So a separate motion to dismiss is really not
9 procedurally correct, but I did review that, and I'm -- I just
10 consider it as your argument as to why the Court should not
11 grant the order. So I -- that's -- that's how I viewed that.

12 But I -- I hear you saying that you do want time to
13 cure the issues with what I mentioned.

14 All right. So -- and -- and the other issue is that
15 the -- the Court really did not have a chance to review the --
16 the documents that were filed just this morning. I -- I
17 reviewed them very briefly just to see what they were and
18 whether they -- they complied with our court rules, but I
19 didn't have an opportunity -- opportunity to read them and
20 really give them much consideration.

21 Under the circumstances, I do think that a
22 continuance is appropriate. I will let both sides know that
23 our -- our law regarding protection records recently changed,
24 it changed July 1st; and the new law makes it clear that
25 repeated delays and continuances are strongly disfavored, so

1 the Court does not anticipate further continuances in this
2 hearing.

3 But under the circumstances I -- I do feel a one-time
4 continuance is appropriate.

5 Ms. Manning, would -- we generally continue hearings
6 for either two weeks or three weeks, I would suggest three
7 weeks; although, it doesn't have to be exactly three weeks. If
8 the Court continued it to the morning of August 12, would that
9 work for your schedule?

10 THE PETITIONER: It would work for my schedule, Your Honor.
11 But this has already been continued. It was continued when
12 Commission Ortiz had it.

13 And based on my declaration that you received and the
14 declaration of my neighbor, I just don't see any reason for it
15 to be continued. It started out as a harassment, and the judge
16 in Issaquah is the one that turned it into a protection order.

17 Again, it doesn't have anything to do with -- with
18 the documents that Zachariah is talking about, which is the
19 parenting plan, the visitation that would have gone through if
20 the adoption had been filed.

21 But the adoption did not go through, so the paperwork
22 that he has submitted has nothing to do with the order that I'm
23 asking to be put in place.

24 He's not going to be able to get those orders signed.
25 It's an adoption order. The adoption did not go through.

1 THE RESPONDENT: It was a contract between you and I --

2 THE COURT: Hold on --

3 THE PETITIONER: A contract --

4 THE COURT: -- please -- hold on. Don't -- don't interrupt
5 each other and don't speak over each other.

6 I -- I understand your position on that, Ms. Manning,
7 and the Court will definitely let both sides make their
8 arguments as to why the Court should or should not consider
9 that.

10 And I -- I do see that it was continued one time
11 previously and the commissioner set some deadlines.

12 Because, as I said, the Court did not have an
13 opportunity to review -- and I'm specifically talking about the
14 -- the declarations that were filed at least one of which is
15 properly signed and on the -- on the proper format -- I am
16 going to grant one more continuance. I will specifically write
17 in the order that further continuances will not be considered
18 absent extraordinary circumstances.

19 And submission of further evidence that is not
20 submitted timely is not going to be a basis for another
21 continuance.

22 If -- Ms. Manning, if would you prefer that the Court
23 just continue it for two weeks, which would be August 5th, the
24 Court could do that. I mean, I understand you don't want it
25 continued at all, but, as I said, I am going to grant one more

1 continuance. So it's a matter of picking a date.

2 THE PETITIONER: August 5th is fine, Your Honor.

3 THE COURT: All right.

4 Mr. Bennett, August 5th, are you available that day?

5 THE RESPONDENT: Yes, Your Honor. August 5th will work.

6 Thank you.

7 THE COURT: All right.

8 So the -- I'm going to set deadlines, and, as I said,
9 the Court is going to hold the parties to those deadlines.

10 So, Mr. Bennett, the documents that you -- that the
11 Court identified as -- as being not proper, so they're not
12 signed or they're not signed under penalty of perjury, you need
13 to have those remedied and filed with the Court no later than
14 5:00 p.m. on July 29th, which is one week from today, and sent
15 to Ms. Manning by email.

16 Ms. Manning, my understanding is that that is -- that
17 was the -- what the Court authorized previously in terms of
18 exchanging documents; is that correct?

19 THE PETITIONER: Yes, Your Honor.

20 THE COURT: All right. And are you still okay with that?

21 THE PETITIONER: Yes, Your Honor.

22 THE COURT: All right. So service will be by email. So, Mr.
23 Bennett, your deadline is 5:00 p.m. July 29th, and that's both
24 it get those filed with the Court and emailed to Ms. Manning.

25 And then, Ms. Manning, if you want to submit what we

1 call a reply, which is essential a response to a response -- to
2 any response materials, you may do so and your deadline for
3 that will be -- I'm going to say noon on Wednesday, August 3rd.
4 And I will write these deadlines in -- in the order.

5 All right. Any questions? Starting with you, Ms.
6 Manning.

7 THE PETITIONER: No, Your Honor.

8 THE COURT: All right.

9 Any questions from you, Mr. Bennett?

10 THE RESPONDENT: No, Your Honor. Thank you.

11 THE COURT: All right. Mr. Bennett, I don't know that we --
12 oh, we do have an email address. It's in the materials you
13 provided.

14 All right. So we will send a copy of the order that
15 the Court is signing today that the coordinator will send that
16 to both of you by email. Next hearing will be August 5th, same
17 time as this morning, so check in at 8:30. Hearings start at
18 9:00 and it will also be by Zoom.

19 At this time the hearing in your case is concluded
20 and you're both excused. Thank you.

21 THE PETITIONER: Thank you.

22 END PROCEEDINGS FOR 7/22/22

23

24

25

1 BEGIN PROCEEDINGS FOR 8/5/22

2 THE COURT: -- for the record.

3 THE PETITIONER: Melvina Manning. May 13, 1959.

4 THE COURT: All right. Thank you.

5 And can the respondent now please unmute and state
6 his name and date of birth?

7 THE RESPONDENT: Zackariah Bennett, January 7, 1981.

8 THE COURT: All right. Thank you.

9 And if either-or both of you want to turn your
10 cameras on, you are free to do so. I don't know how much the
11 Court will be able to see but we can try. And both of you are
12 coming through -- your audio is coming through clearly so the
13 Court can hear you.

14 All right. And I'm just pulling up the Court file in
15 your case.

16 (Pause in proceedings.)

17 THE COURT: All right. The parties were previously in court
18 for a hearing on July 22nd, and the hearing was continued to
19 allow time for submission or exchange of additional documents.

20 The Court has reviewed everything that was
21 subsequently filed by both sides since then. There were some
22 documents that were -- that the clerk rejected, probably
23 because the case number wasn't written on them or some other
24 similar reason. And so when that happens, the Court doesn't
25 have access to reviewing those. But you should have received a

1 message and been notified of that. So I'm assuming that
2 anything that was rejected would have been resubmitted.

3 THE RESPONDENT: Your Honor, I did receive notice last night
4 at 5:20 at night that one of the -- two of the documents that I
5 entered on 29th were rejected, one of them being the police
6 report of this incident. So I did -- I did immediately
7 resubmit. I wasn't why it went -- it got rejected but it's the
8 police report of this incident. So I figured that was kind of
9 important. And --

10 THE COURT: Well --

11 THE RESPONDENT: -- like I said, I didn't receive -- I didn't
12 receive notice until -- the email was sent to me last night at
13 5:00 something last night.

14 THE COURT: All right. Well, the Court is not going to
15 continue this hearing again. If you want to -- well, I'm just
16 looking at the court file --

17 THE RESPONDENT: Well, I want to --

18 THE COURT: -- so is this the -- is the police report you're
19 talking about the two-page document that -- it's -- it's more
20 of a call log and a -- a brief description?

21 THE RESPONDENT: Yes.

22 THE COURT: All right.

23 THE RESPONDENT: Yes.

24 THE COURT: All right. So I have that and I -- I have
25 reviewed that. It looks like you refiled it this morning and

1 so I -- I did see that.

2 THE RESPONDENT: Thank you, Your Honor.

3 THE COURT: All right.

4 Ms. Manning, are you ready to proceed with the
5 hearing?

6 THE PETITIONER: Yes, Your Honor.

7 THE COURT: All right.

8 And, Mr. Bennett, I -- it sounds like -- the Court
9 has reviewed that police report -- are you also ready to
10 proceed with the hearing?

11 THE RESPONDENT: Yes, Your Honor.

12 THE COURT: All right.

13 So I'm going to in a moment swear both parties in,
14 and then I will take testimony and give both sides an
15 opportunity to tell the Court whatever they want me to
16 consider. I will hear from the petitioner first, and then I'll
17 hear from the respondent.

18 Because this is the petitioner's case, she gets a
19 chance to go again and address the Court after the respondent
20 does if she wants to reply to anything that was raised during
21 the respondent's presentation.

22 I do want to be clear as to what these proceedings
23 are about because some of what was filed really does not -- is
24 not relevant to the issue that's before me, which is whether or
25 not to grant a protection order to the petitioner and the minor

1 child that she also included on the petition.

2 So the -- the motion to appoint a guardian ad litem,
3 for example, that is not something that this court has the
4 authority to do. That's not part of the protection order
5 statute. So anything that is beyond the scope of why we're
6 here is not going to be something that I want to you focus in
7 your testimony.

8 I just wanted to --

9 THE RESPONDENT: [INAUDIBLE] venue on that, Your Honor.

10 THE COURT: -- be clear about that.

11 THE COURT: I did not hear what you said.

12 THE RESPONDENT: I said I did correct the venue on that, Your
13 Honor. I refiled in district court with those other matters.

14 THE COURT: All right. I'm just being clear about the issues
15 that are before me and --

16 THE RESPONDENT: Understood.

17 THE COURT: -- the things that are not.

18 All right. Can --

19 THE RESPONDENT: Thank you.

20 THE COURT: -- both parties please raise their right hand and
21 let me know when you have it raised.

22 THE PETITIONER: It's raised, Your Honor.

23 THE COURT: All right.

24 Mr. Bennett, is your hand also raised?

25 THE RESPONDENT: Yes. Yes, Your Honor.

1 THE COURT: All right. Do you swear or affirm that any
2 testimony that you're about to give is the truth, the whole
3 truth, and nothing but the truth?

4 THE RESPONDENT: Yes --

5 THE PETITIONER: I do.

6 THE RESPONDENT: -- I swear.

7 THE COURT: All right. I heard affirmative responses from
8 both parties. Thank you. You can put your hands down.

9 All right. So, again, I'm going to start with taking
10 the petitioner's testimony. Please do not interrupt when the
11 other person is talking. As I said, I'll give both parties a
12 chance to speak, but it makes it very difficult for the clerk
13 to get a clear record when people are talking at the same time,
14 especially over Zoom.

15 All right. Ms. Manning, again, I did review your
16 petition and your subsequent declaration -- or declarations. I
17 believe you filed a couple of declarations. Can you tell me
18 what the relationship between you and the respondent is?

19 THE PETITIONER: Zackariah Bennett is my son.

20 THE COURT: All right. And you filed this petition on behalf
21 of yourself and on behalf of a minor child. Can you tell me
22 what your relationship to the minor child is?

23 THE PETITIONER: Timothy is my grandson.

24 THE COURT: All right. And what is the respondent's
25 relationship to Timothy?

1 THE PETITIONER: The respondent is his father.

2 THE COURT: All right. Thank you.

3 Is everything that you wrote in your petition and
4 your subsequent declarations true and correct?

5 THE PETITIONER: Yes, Your Honor.

6 THE COURT: All right. And can you tell me what led to you
7 filing the request for the protection order?

8 THE PETITIONER: Yes, Your Honor.

9 We've had two incidences. The first was in June of
10 2019. We were at Zackariah's Bennett's brother's wedding.
11 Timothy was not at that wedding. He didn't want to go. He was
12 home.

13 Zackariah left the wedding quite abruptly and I was
14 concerned as to why he left. And I looked at my daughter,
15 Mystica and I said, What is going on?

16 And she said, I don't know.

17 And then I said, Oh, my God. Tim's home. He
18 probably headed to the house.

19 No sooner had I said that than Timothy called and
20 said that Zackariah was in his car, honking his horn, and there
21 was somebody that, in his words, was pounding on the front door
22 and he was scared.

23 We were only maybe three minutes from the home. By
24 the time -- I stayed on the phone with Tim the entire time. He
25 said that -- that the person had left. He did know it was

1 Zackariah at that time. He just knew that somebody was trying
2 to get him out of the house.

3 We got here and Zackariah had already left. We
4 called the police, and they said that unfortunately because we
5 called after the fact that they couldn't go anything.

6 Nothing happened after that until this last incident
7 when Zackariah showed up here again and I was home. We had
8 told him in 2019 that he was not wanted here and not to come
9 back. That incident, when he came back, Jessica, his wife, and
10 the two small children came to my door and insisted on seeing
11 Timothy.

12 My dogs are being very loud and obnoxious. I
13 apologized to the two small children that the dogs were being
14 so loud and I hope they weren't afraid.

15 Jessica responded by, I told them you had big dogs.

16 I looked at Jessica and I asked her what she was
17 doing here?

18 She said that they wanted to see Tim.

19 And I said, That's not going to happen. And I asked
20 them to leave and it just escalated from there.

21 We've been under a threat from Zack ever since we got
22 custody of Tim that he was going to kidnap him, that he was
23 going to kill us, I -- I have uploaded -- or sent -- filed all
24 that information with the Court. You have that before you, the
25 conversation that was [INAUDIBLE].

1 So even though nothing -- no threats had been made
2 this entire time, we have still always lived with that threat
3 over our head. Tim was never allowed to walk to school. We
4 always took him to school for fear that Zack could show up at
5 any time and take Tim.

6 So at this time, since there have been two
7 incidences, we just are asking for the Court to honor our
8 request for the protection order so that we can continue just
9 to go about our daily lives and not have to have the threat of
10 Zack showing up here whenever he wants to or Tim's school or
11 Tim's place of employment.

12 THE COURT: All right. And I did see the -- the -- it looks
13 the printout of some messages on a platform you said was Magic
14 something? I did not understand what those were. Can you just
15 explain a little bit more about what -- what that is?

16 THE PETITIONER: Yeah, the Magic Jack was used years ago in
17 place of a cell phone. I believe it was a USB that was plugged
18 into a laptop, and it was just a form of communication. You
19 could basically go anywhere and have the same phone number, so
20 it wouldn't have mattered if you were in Colorado or you were
21 in Washington, you wouldn't know where that person was. That
22 was a conversation between Zackariah and Timothy's mom Kelly.

23 THE COURT: All right. And how did you get a copy of that?
24 Did -- did someone provide that to you?

25 THE PETITIONER: It was -- when the conversation takes place

1 it all comes out on screen, so we were just able to join the
2 conversation to download the -- all the conversation as it was
3 being said.

4 THE COURT: All right. And what -- when is that conversation
5 from?

6 THE PETITIONER: 2008. It was right after we brought Tim home
7 from Colorado because Child Protective Services were going to
8 take him into custody.

9 THE COURT: All right. And so I did -- I reviewed the custody
10 case number that's Cause No. 08-3-03956-4. And that does --
11 the custody order in that case does place Timothy with you.

12 Can you tell me how old Timothy was when you first got
13 custody of him, approximately?

14 THE PETITIONER: 14 months.

15 THE COURT: 14 months.

16 And has Mr. Bennett had any visitation with Timothy
17 over the years?

18 THE PETITIONER: There has been a couple visitations when Tim
19 was very small.

20 Zackariah has had plenty of opportunity to file with
21 the Court for parenting plans. We gave him the information
22 when Timothy was in counseling that he could contact the
23 counselor ten years ago and done reunification but he did not.

24 It's just all of a sudden in 2019 he showed up and
25 decided he wanted to have communications with Tim.

1 And then, again in, 2022, when Tim clearly told him at
2 this time he's not interested in having a relationship with his
3 father. He just, at this time, is not interested.

4 THE COURT: All right. Anything else that you want the Court
5 to hear from you?

6 THE PETITIONER: Just that when we asked Zack to leave this
7 last time he just refused, he -- he wouldn't leave. And he had
8 his two small children were in front of him and part of all the
9 drama. Zack had to have known when he came here it wasn't
10 going to be a peaceful visit because we didn't want him here.
11 And for him to bring his two children and make them a part of
12 the drama was unnecessary.

13 He -- again, Your Honor, he shouldn't have showed up
14 here. He was asked in 2019 not to come here. He's had plenty
15 of opportunities to go before a family court and ask for
16 visitation and he hasn't.

17 THE COURT: All right. Thank you.

18 All right. Mr. Bennett, it's your opportunity to
19 testify now. The Court did review your written declarations,
20 and I'll just ask you is everything that you wrote in your
21 written declarations true and correct?

22 THE RESPONDENT: Yes, Your Honor.

23 THE COURT: All right.

24 You can go ahead and tell the Court whatever you want
25 me to hear and any argument you have as to why I should not

1 grant the order that's being requested.

2 THE RESPONDENT: Well, from a legal standpoint, Your Honor,
3 there's nothing that's been alleged or actually articulated
4 that is domestic violence or harassment, ever. I've never done
5 anything like that to my mom or my son. I would -- I would not
6 do that.

7 And the purpose of my visit was, you know, from what
8 I understanding [INAUDIBLE] interest in the fact that the 14th
9 Amendment is trying to, you know, establish communications
10 between siblings. I didn't want to go there for me. As this
11 been said in declaration from my wife and my daughter, I didn't
12 want to go. I stopped at the park before we got there. Didn't
13 even want to go there. And when I got there, stayed in the car
14 on the street, faced the other direction and my children --
15 [INAUDIBLE] my children were taught that family is everything
16 and family matters.

17 And, you know, I've been trying for over ten years
18 now, changing every part of my life, becoming an upstanding
19 citizen, not getting in any trouble. I've been on the school
20 board and other things. I'm a good dad. You know, I try hard
21 with my parents. I'm good to my wife, and my grandparents
22 [INAUDIBLE] with me. They know what's going, and it's -- this
23 is just a case of -- of Mom's not letting have anything to do
24 with my son.

25 And even when my children want something to do with

1 him, they can't, either. That was the whole purpose. As she
2 said in one of her declarations that I was in the car while the
3 children were there talking to her. It wasn't about me. It
4 had nothing to do with me.

5 It had to do with my children wanting to meet their
6 brother. They hear about him, they want to meet him. Family
7 is everything to them. They refer to her as Grandmom Mel when
8 she answered the door because that's what they've been taught,
9 she's their grandma. And, you know, I'm trying to do
10 everything I can.

11 I don't understand why my mom is doing any of this.
12 The incident in 2019 that she refers to [INAUDIBLE] , as the
13 text message between me and her, my mom has already talked to
14 Kristina (phonetic) about it. She knows that that had nothing
15 to do with Tim, it had nothing to do with me.

16 And [INAUDIBLE] I don't -- I don't want to see Tim. I
17 think that would be wrong. He's spent his whole life with
18 Melvina and John, that's been his entire life, same school,
19 same everything. I don't -- I don't want to interfere with
20 that in any way, shape, or form.

21 Like I've said many time, I'd be happy with just a
22 Zoom meeting to get to know my son and find out because I've
23 only been able see him one time in -- you know, since 2008 I've
24 been able to see him once.

25 And in 2013 my mom put up -- you know, a supposed

1 agreement for the adoption, got me to sign papers agreeing to
2 adoption that I was going to get communication and visitation
3 and specifically that it was in Tim's best interest to do so.

4 Since then I've done nothing but [INAUDIBLE]. I've
5 changed every piece and part of my life, straightened
6 everything out, and -- and done everything to be an upstanding
7 citizen.

8 And it's -- I've got all the messages between me and
9 my mom between 2010 until she stop talking to me right after I
10 got married in 2018. But that shows that there's been
11 basically a loving and caring relationship back and forth
12 between me and my mom except for whenever I brought up my son.
13 Whenever I brought up my son, it was -- she would go off on me
14 and stop talking to me and then go back to talking to me.

15 She's got the same messages, so I'm sure it could all
16 be validated. But the point is I -- I would love to have a
17 relationship with my mom. I don't understand what all this is
18 about.

19 And during this incident there, even the neighbor's
20 report said that I said, you know, clearly, like, Why? Why
21 can't I see him? What is it -- why? Why is my son scared of
22 me all of a sudden? I've got video from 2012 with him, there's
23 no fear. We had a great relationship. And then all of a
24 sudden it's become fear and it's become all this. And I've not
25 -- I've not done anything.

1 I was gone for the most part. I was in prison. And I
2 even tried to contact from there through the -- the [INAUDIBLE]
3 Dad programs and everything else I tried to take advantage of.
4 My mom boxed it all and gave nothing to him.

5 And it's -- I don't understand why she shows -- she's
6 just destroyed the entire bond between me and my son. But it
7 -- it's the way it's happened. And I'm still not even
8 requesting for him to be taken out of her home or anything
9 else. I just want his brothers to be able to meet him, and I
10 would like to be able to have communication with my son.

11 I've got medical issues and things like that, it could
12 be effecting him later in life. They're effecting me pretty
13 heavily right now, and I believe that it's stuff he should
14 know.

15 I don't -- I really don't understand what my mom's
16 trying to do. I've never done anything under the definitions
17 of harassment. Anything else -- like my mom said, two times
18 and only two times. I lived down the street for them for a
19 while when I got out. I lived, like, three houses down and I
20 -- no problems. All love, all everything. I didn't go over
21 there. I have not violated my mom's rules.

22 And I [INAUDIBLE] my mom's -- I wanted my mom's
23 approval. Yes, I could have gone and drug it through the
24 courts and everything else, but I wanted my mom's approval to
25 be able to see my son and be part of his life.

1 And she just wouldn't give it to me. She kept
2 telling me if I get better, if I proved stability. I've done
3 all of that. I have. I've done it all. I have all my -- my
4 entire family rest of my family knows, they see it every single
5 day, and it's all I want is to be able to have a relationship
6 and talk to my son. It would be nice if I could have a mom
7 again, too. I'm -- I miss her terribly.

8 But I -- I just -- I -- I've never even gotten an
9 answer as to why all this is taking place. My brother hasn't
10 gotten an answer. Nobody's got an answer, that I know of, to
11 why this has been this way or what I can do to change any of
12 it. I've never hurt them. I've never threatened her.

13 I mean -- and whatever I said to my wife and what I
14 thought was a privileged conversation with my wife, I don't
15 know. I was -- 2008 -- I was young going to the prison and
16 maybe I said something stupid there. I'm not sure. I don't
17 remember the conversation.

18 But I know that I've never to my mom said anything
19 like that, ever. And I've never done any acts that would make
20 her actually believe that any of that would take place. Like I
21 said, I lived right down the street. I was allowed to bring
22 Christian over as long as I stayed in the car on street and did
23 not go in the house or did not go in the driveway. I've got
24 plenty of text messages showing that, too. And that's
25 [INAUDIBLE] this time, as well. And 2019 was the same thing.

1 I stayed in my car.

2 This is the first time I've ever gotten out of my
3 car. It's the first time I've ever actually stood up to my mom
4 and not even ran away from home or -- or just backed down to
5 her. I actually stood up to protect my rights and my
6 children's rights to be able to see their brother and meet
7 their brother. And that's all I've done, protecting -- trying
8 to protect the liberty interests of my family and show my
9 children that even when you're scared or terrified like I was
10 that you'll do what's right for family, regardless of how
11 terrified you are. And I'm terrified. Just like when my mom
12 asked me why the cops show up and I told her that we called the
13 cops. And she said, Why?

14 I said, Because I'm terrified, Mom.

15 And he said you're -- of me?

16 And I said, Yeah. What you're trying to do, what
17 you'll try to do. And here she is doing it. It's exactly what
18 I was talking about.

19 I had my wife call 911 the second she had me get out
20 of the car to talk to my mom. And all I asked for was
21 paperwork. I just wanted the paperwork to see why and what was
22 going -- you know, what -- the proof was or reason was why my
23 kids couldn't see him and so I that can take it to court and
24 start doing something about. This is the first time I've asked
25 her for that.

1 I -- I've tried to be a respectful and loving son.
2 And it just doesn't seem to matter. The only thing that
3 matters to her is that I stay away from my son. And -- and
4 it's just -- it -- it really hurts me because she's told me
5 once that I remind her of my dad, that I look like my dad. And
6 that's the reason why I -- she doesn't want me -- she doesn't
7 want me in her life. And that hurts.

8 And then when I was there this time in the middle of
9 it? She called me Tim, which is my dad's name. She wasn't
10 referring to my son, she said, No, Tim, you can't see him.

11 And I was, like, What? I'm not my dad. You know, my
12 -- my dad's dead. My mom's here. Why can't I have my mom? I
13 got a response of her family's dead and she was -- John's
14 family's dead, she [INAUDIBLE] it's not my point. My mom's
15 alive; my son's here; I've got medical things that are
16 shortening my life span. I don't know how much yet, but things
17 aren't going as well as they should.

18 And I wanted to have the time that I have remaining
19 being able to have some kind of relationship with my son, at
20 least to know what he's going through. I mean, he's turning
21 into a man, and I haven't been able to see him since he was a
22 child.

23 And I've -- like I said, I've never done anything
24 threatening to my mom. I've never threatened -- you know,
25 threatened her with violence. I've never done anything violent

1 to her, and it hurts that she's even going through with this
2 because, you know, if -- if someone I know in public, this is
3 publicly searchable.

4 If I try to get on the school board next year, this
5 is something that I'm going to have to explain to them. And
6 it's -- I mean, it's ruining everything I'm trying to do with
7 my life, and I've got ten years since I've done anything wrong
8 at all. Anything. Not even a seat belt ticket. Ten years.

9 And I -- I'm trying to maintain that. I want it to
10 be better. And that's -- that's all I have to say, Your Honor.
11 Thank you.

12 THE COURT: All right. Thank you.

13 Ms. Manning, you do have an opportunity to testify
14 again in reply to the respondent's testimony if you would like
15 to do so.

16 THE PETITIONER: Your Honor, I don't even really know how to
17 respond. Everything that I said in my declaration, including
18 the response to where the alienation of affection, the
19 defamation of character, my response to all of those are there.

20 He said that -- something about a bond with his son?
21 Your Honor, there has been no bond. Again, he's had no
22 communications with Timothy at all. He -- he did live right
23 down the street. You're correct. Zackariah did live down the
24 street.

25 He had plenty of opportunities, again, to meet with

1 his counselor. Tim has been counseling for a lot of years from
2 the neglect and the abuse that he took during the time that he
3 lived with his mother and his fathered in Colorado. Again, we
4 got Timothy because of CPS Colorado.

5 When Zackariah came to the door and Timothy came to
6 the door, Timothy politely said, I am not ready to talk to you
7 at this time.

8 Zackariah demanded to know why. He started flailing
9 his arms. Tim was scared. Then Zack demanded, You need to
10 meet your brother and your sister. They're right there. Go
11 meet them.

12 I -- I'm not sure where Zackariah's daughter
13 Jessalyn, at the age of ten, is so curious about Tim and all
14 the stories that Zachariah has told about him. The only
15 stories Zachariah would even know were the first 14 months of
16 Timothy's life.

17 These children are five and ten, they don't know Tim.
18 They -- they're asking to meet Tim. I just find it kind of odd
19 that a five-year-old and a ten-year-old would be demanding to
20 meet their brother that they know nothing about, that Zackariah
21 knows nothing about.

22 Tim was afraid. He turned around and he walked away.

23 Timothy has also submitted his declaration. Again, I
24 asked him to leave and he didn't. I've never been violent
25 towards Zack. The reason 911 was called by his wife Jessica,

1 I'm not really clear. He was trespassing on my property so for
2 them to call the police, I'm glad the police did show up
3 because that way things got deescalated. Zackariah left.

4 The officer in the police report stated if I did not
5 want my son around, I needed to go to the courts and get an
6 order, of which I have done, Your Honor.

7 THE RESPONDENT: Your Honor, if I may, real quick? The police
8 report, itself, stated no crime.

9 THE COURT: Right. Well --

10 THE RESPONDENT: And --

11 THE COURT: Hold on. Hold on.

12 THE RESPONDENT: -- the respondent hasn't --

13 THE COURT: Hold on.

14 THE RESPONDENT: Yes, ma'am.

15 THE COURT: Your opportunity to testify has past. I -- I did,
16 as I said, review the police report. I understand that it
17 didn't result in an arrest and that the -- the police did not
18 think that a crime had been committed. I reviewed that and I
19 saw that.

20 All right. Anything further, Ms. Manning?

21 THE PETITIONER: No, Your Honor.

22 THE COURT: All right. I'm going to make my ruling now and
23 explain -- explain the definition that the Court applied and
24 the reason for my ruling. I'll give both sides an opportunity
25 to ask any questions to clarify if they don't understand any

1 portion of my ruling. But I ask that neither of you interrupt
2 me while I'm making my ruling. And I'll ask the court
3 coordinator to mute if either party interrupts me while I'm --
4 while I'm speaking.

5 All right. We are here on the petitioner's request
6 for a domestic violence protection order filed on behalf of
7 herself and her grandson, who she has legal custody of and --
8 and has had legal custody of for the vast majority of the
9 child's life.

10 The -- our law defines domestic violence to include
11 unlawful harassment, and that was the -- that was the portion
12 of the definition of domestic violence that the Court thought
13 was most relevant to this situation. Unlawful harassment, as
14 our law defines it, means a knowing and willful course of
15 conduct directed as a specific person that seriously alarms,
16 annoys, harasses, or is detrimental to such person and that
17 serves no legitimate or lawful purpose.

18 The course of conduct must be such as would cause a
19 reasonable person to suffer substantial emotional distress and
20 must actually cause substantial emotional distress to the
21 petitioner.

22 The law then goes on to define course of conduct,
23 which is a critical part of the definition of harassment. And
24 course of conduct means a pattern of conduct composed of a
25 series of acts over a period of time, however short, evidencing

1 continuity of purpose.

2 Course of conduct includes any form of communication,
3 contact, or conduct including electronic communication but does
4 not include constitutionally protected free speech.

5 Constitutionally protected activity is not included
6 within the meaning of course of conduct.

7 In determining whether the course of conduct serves
8 any legitimate or lawful purpose, the Court should consider
9 several factors that I'm going to go through. One, any --
10 whether any current contact between the parties was initiated
11 by the respondent only or was initiated by both parties. Here
12 it's clear that the contact was initiated by the respondent and
13 not the petitioner or the child.

14 Two, whether the respondent has been given clear
15 notice that all further contact with the petitioner is
16 unwanted. Here, with regard at least to the second incident,
17 the respondent did have notice that the petitioner didn't want
18 further contact or didn't want him coming to the home again.
19 That was communicated after the 2019 incident.

20 Three, whether the respondent's course of conduct
21 appears designed to alarm, annoy, or harass the petitioner. I
22 -- I didn't find that that -- that the respondent's conduct
23 here was designed to alarm, annoy, or harass the petitioner. I
24 think the respondent is focused on getting access to the child,
25 and I don't think that his intention is to alarm, annoy, or

1 harass the petitioner. So I -- I didn't find that that one --
2 that factor was applicable.

3 Whether the respondent is acting pursuant to any
4 statutory authority included but not limited to acts which are
5 reasonably necessary to protect property or liberty interests,
6 enforce the law, or to meet specific statutory duties or
7 requirements.

8 I believe the respondent was trying to make an
9 argument that somehow introducing his younger children to the
10 -- the child at issue in this case was a protected liberty
11 interest. I don't agree with that because here there is a
12 court order that places Timothy with the petitioner. And so
13 any -- any changes to that or any contact that the respondent
14 wants to initiate with the child is subject to those orders,
15 and he would need to go through that legal process in order to
16 -- if he wants to start having visitation with Timothy or some
17 sort of contact or communication.

18 The fifth factor is whether the respondent's course
19 of contact has the purpose or affect of unreasonably
20 interfering with the petitioner's privacy or has the purpose or
21 affect of creating an intimidating, hostile, or offensive
22 living environment for the petitioner.

23 In considering this factor, I -- I did look,
24 especially at the neighbor's declaration, and how she described
25 went confrontation. And I also considered Timothy's

1 declaration, as well as the petitioner's; and I do find that
2 the petitioner and Timothy were intimidated by the respondent's
3 behavior. And it sounds like the petitioner and Timothy are --
4 have sort of an ongoing fear of the respondent making further
5 attempts at unwanted contact. And so I -- I am finding that
6 that applies here.

7 And then the last factor is whether contact by the
8 respondent with the petitioner or the petitioner's family has
9 been limited in any matter by previous court order. Here there
10 was a restraining order that was issued under the custody case.
11 That order, as the Court understands it, was only in place for
12 a year after those orders were entered. So there -- there
13 certainly wasn't an order in place at the time these incidents
14 happened. But there was a prior court order, and so I -- I did
15 find that a relevant consideration.

16 I -- I'll say that I thought to some extent this was
17 a close call, but what -- what leads to the Court's conclusion
18 and finding that the respondent did commit unlawful harassment
19 was the -- the descriptions of the two incidents when he went
20 to the home. If he had just sort of calmly went and knocked on
21 the door and then left after he'd been told that -- that the
22 child didn't want to see him, I think that my decision would be
23 different.

24 But the behavior described by both the petitioner,
25 the neighbor who was a witness, and the child, went well beyond

1 that and was intimidating and disruptive. And I am finding
2 that that -- that those two incidents together meets the
3 definition of unlawful harassment.

4 I -- I also just want to say, it concerns the Court
5 that the respondent doesn't seem to be able to see this
6 situation from the perspective of the 15-year-old child. I
7 understand that the respondent is the child's father and that
8 he's -- from what he's described and what some of the other
9 declarations that he provided support, it sounds like he has
10 turned his life around over the past several years and maybe is
11 in a position where he's more able to be a positive influence
12 in the child's life.

13 But this child is now 15-and-a-half years old and has
14 spent almost his entire life with the petitioner. And for any
15 child under those -- under those circumstances it would be
16 jarring to have a parent that has not had custody or -- or
17 regular visitation with that child show up out of the blue with
18 their other children and approach the child directly and -- and
19 sort of want to facilitate this introduction -- introduction to
20 the siblings or to sort of reconnect with the respondent.

21 That is -- that's not sort of showing any -- any
22 sensitivity or appreciation for the perspective of the child in
23 that case. And there is a -- a legal process to go through if
24 you want to seek visitation under the family law case. As I
25 said at the beginning, that issue is not before me, and I'm

1 certainly not making any sort of opinion or statement about --
2 about what would happen if you did that.

3 But I just want to -- to make that point because it
4 -- it does concern the Court that -- that Respondent thought it
5 was appropriate to approach the child directly without any sort
6 of plan or involvement of the petitioner and kind of careful
7 thought and consideration given to how this would affect the
8 child and whether this would be something that the child wanted
9 or felt comfortable with.

10 So I am entering the order for one year. The order
11 will be in place until August 5th of 2023. The petitioner does
12 have a right to seek renewal of that order, so if the
13 petitioner feels that she needs an order in place for longer
14 than that, she has the right to seek renewal. And a request
15 for renewal needs to be filed within the 90 days prior to the
16 expiration date.

17 I am required to enter an order to surrender weapons
18 as part of this order. That order will be in place for -- also
19 for one year so August 5, 2023. And as I did in prior
20 hearings, I am required to set a review hearing for that. The
21 review hearing will be August 11th at 8:30 a.m. Those hearings
22 are by Zoom or phone and instructions about how to appear will
23 be included with the order that I'm entering.

24 I do need to give the respondent some information
25 about that order, which I'm going to read right now. So, Mr.

1 Bennett, the law requires when the Court enters this type of
2 order that I also enter an order requiring you to surrender any
3 firearms or weapons and to surrender any concealed pistol
4 license if you have one. You're required to surrender those
5 immediately or no later with -- no later than five days from
6 today's date.

7 If you surrender any weapons to law enforcement, you
8 will get a receipt showing that you have done that and you can
9 file that with the Court as verification that you have done
10 that.

11 If you have -- if you do not have any firearms or
12 dangerous weapons, you can sign something called a declaration
13 of non-surrender, which is a sworn statement attesting that you
14 don't have any firearms or dangerous weapons in your
15 possession.

16 If you have been convicted of a crime that already
17 prevents you from owning or possessing a firearm, you may want
18 to consult with a lawyer before filing a receipt or a
19 declaration of non-surrender.

20 As I said, I'm setting review hearing for August
21 11st. Instructions for how to appear, that will be in the
22 order. As long as this order is in place, you are -- are you
23 prohibited from possessing or attempting to acquire -- to
24 acquire firearms or other dangerous weapons.

25 You do have to participate in the review hearing.

1 The purpose of that hearing is for the Court to -- it's a
2 different court, it won't be before me -- but is for the Court
3 to verify whether you've complied with the order to surrender
4 either by filing the receipt showing proof of surrender or by
5 filing a declaration of non-surrender.

6 A violation of the order to surrender weapons could
7 result in criminal charges. Once I sign this order, any
8 attempt to purchase a firearm or other dangerous weapon, or to
9 obtain a concealed license may result in criminal charges
10 against you.

11 If you have any questions about the order to
12 surrender and what your obligations are or your rights, you may
13 want to consult with a lawyer.

14 All right. I will, as I said, give both parties to
15 ask questions. I -- I have made my ruling, and I'm not going
16 to change my ruling, so this is not an opportunity to argue
17 with me about my ruling or to try to get me to change my
18 ruling. It's a opportunity to ask if there's a portion of my
19 ruling that you don't understand or, Ms. Manning, if there is
20 something requested in the petition that I didn't specifically
21 address you can bring that to my attention.

22 So I'll start with you, Ms. Manning, do you have any
23 questions about what the Court's ruling is?

24 THE PETITIONER: No, Your Honor. I have no questions. Thank
25 you.

1 THE COURT: All right.

2 Mr. Bennett, any questions from you?

3 THE RESPONDENT: Just one for my appeal process and that's the
4 rules evidence. The [INAUDIBLE] referred to the video that
5 clearly proves the opposite of the reason [INAUDIBLE] --

6 END PROCEEDINGS FOR 8/5/22

C E R T I F I C A T E

I, Thomas Marshman, do hereby certify under penalty of perjury under the laws of the State of Washington that the following is true and correct:

1. That I am an authorized transcriptionist;
2. That I received the electronic recording directly from the clerk;
3. That this transcript is a true and correct record of the proceedings to the best of my ability; that areas of the recorded proceedings that were not decipherable for any reason are noted as [INAUDIBLE];
4. That I am in no way related to or employed by any party in this matter, nor any counsel in the matter and;
5. That I have no financial interest in the outcome or end result of the litigation.

Dated this 4th day of October 2022,



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Notary Public in and for the
State of Washington,
Residing at Arlington.

My commission expires 3/6/2023

